

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jennifer Smith	Team: Squad #14	CCRB Case #: 201708997	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/18/2017 5:00 PM	Location of Incident: 18-13 Mott Avenue;101st Precinct Stationhouse	18 Mo. SOL 4/18/2019	Precinct: 101		
Date/Time CV Reported Mon, 10/30/2017 5:26 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/30/2017 5:26 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Dempsey	10108	943156	101 PCT
2. SGT Alexander Rosaschi	4487	947436	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Louis Camerada	28508	950143	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Stephen Dempsey	Discourtesy: At 18-13 Mott Avenue in Queens, Police Officer Stephen Dempsey spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Stephen Dempsey	Off. Language: At 18-13 Mott Avenue in Queens, Police Officer Stephen Dempsey made remarks to § 87(2)(b) based upon race.	B . Unsubstantiated
C . POM Stephen Dempsey	Off. Language: At 18-13 Mott Avenue in Queens, Police Officer Stephen Dempsey made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	C . Unsubstantiated
D . SGT Alexander Rosaschi	Abuse: At the 101st Precinct stationhouse, Sergeant Alexander Rosaschi did not process § 87(2)(b) complaint regarding an officer.	D . Unfounded

Case Summary

On October 30, 2017, § 87(2)(b) filed this complaint online with the CCRB (01 Board Review).

On October 18, 2017, at approximately 5:00 p.m., § 87(2)(b) was sitting inside of her double-parked grey Infinity Q50, with her colleague, § 87(2)(b) outside of 18-13 Mott Avenue in Queens, when Police Officer Stephen Dempsey and Police Officer Louis Camerada of the 101st Precinct approached her and told her to move her vehicle. When § 87(2)(b) did not immediately comply, PO Dempsey allegedly used profanity toward § 87(2)(b) (**Allegation A: Discourtesy, word**), and made a remark regarding § 87(2)(b) race (**Allegation B: Offensive Language, race**) and gender (**Allegation C: Offensive Language, gender**). PO Dempsey issued § 87(2)(b) a summons for being double-parked and the officers left (02 Board Review).

§ 87(2)(b) immediately went to the 101st Precinct stationhouse and spoke to Sergeant Alexander Rosaschi of that command, with whom she requested to file a complaint regarding PO Dempsey. Sergeant Rosaschi allegedly did not process § 87(2)(b) complaint (**Allegation D: Abuse of Authority, refusal to process civilian complaint**).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

However, § 87(2)(b) said it was dismissed.

There is no video footage from this incident.

Findings and Recommendations

Allegation A - Discourtesy: At 18-13 Mott Avenue in Queens, Police Officer Stephen Dempsey spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) was double-parked outside of 18-13 Mott Avenue in Queens with § 87(2)(b).

§ 87(2)(b) said that she and § 87(2)(b) had just left work and were on their way to get dinner (03 Board Review). Upon arriving at the restaurant, § 87(2)(b) double-parked her vehicle so that § 87(2)(b) who recently had knee surgery, could easily exit. Before § 87(2)(b) could exit, PO Dempsey and PO Camerada arrived. PO Dempsey asked § 87(2)(b) if she knew that she was double-parked. § 87(2)(b) said she was waiting for § 87(2)(b) to exit the car. PO Dempsey parked his vehicle and § 87(2)(b) remained double-parked. PO Dempsey and PO Camerada approached § 87(2)(b) vehicle on foot. PO Dempsey ordered § 87(2)(b) to move her vehicle. § 87(2)(b) told PO Dempsey again that she was waiting for her friend who had knee surgery and walked with a cane. PO Dempsey told § 87(2)(b) that he would issue her a summons if she did not move her car. § 87(2)(b) told PO Dempsey that she was § 87(2)(b) and showed him her shield. PO Dempsey allegedly said to § 87(2)(b) “I don’t give a fuck where you work at,” and he issued her a summons for being double-parked.

§ 87(2)(b) declined to participate in this investigation further than providing a brief phone statement, § 87(2)(g) (04 Board Review). § 87(2)(b) alleged PO Dempsey replied, “I don’t give a fuck where you work at. You’re going to get this ticket.”

§ 87(2)(g)

PO Dempsey said that he began to issue § 87(2)(b) a summons for being double-parked, and in response, § 87(2)(b) told PO Dempsey that she was § 87(2)(b). § 87(2)(b) asked PO Dempsey why he was unable to show her “courtesy” by letting her remain double-parked without being issued a summons. PO Dempsey told § 87(2)(b) that he was treating her with respect because he had

asked her three to five times to move, therefore giving her multiple opportunities to not be issued a summons for double-parking. PO Dempsey denied telling § 87(2)(b) that he did not “give a fuck” where she worked, but said he may have told her that he did not “care” where she worked, without using profanity. [At this point of PO Dempsey’s CCRB interview, PBA representative Richard Murray intervened and asked PO Dempsey to clarify which statement he made. PO Dempsey then said that he made neither statement.]

§ 87(2)(g)
PO Camerada said that after § 87(2)(b) told PO Dempsey that she was a corrections officer, she asked him why he could not show her courtesy, and in response, PO Dempsey asked § 87(2)(b) why she could not show him courtesy by moving her vehicle, since she was also a city employee. He denied hearing PO Dempsey make the alleged discourteous statement.

§ 87(2)(g)
It is therefore recommended that **Allegation A** be *unsubstantiated*.

Allegation B- Discourtesy: At 18-13 Mott Avenue in Queens, Police Officer Stephen Dempsey made remarks to § 87(2)(b) based upon race.

Allegation C - Discourtesy: At 18-13 Mott Avenue in Queens, Police Officer Stephen Dempsey made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

It is undisputed that § 87(2)(b) race was, in some form or another, a topic of discussion during this incident.

§ 87(2)(b) said that after PO Dempsey gave her the parking summons, she told PO Dempsey that she was going to take a photograph of him. In response, PO Dempsey allegedly said, “Go ahead, you stupid black bitch.” § 87(2)(b) took a photo of PO Dempsey (07 Board Review) and PO Dempsey left the scene with PO Camerada.

§ 87(2)(b) said that § 87(2)(b) told PO Dempsey that she was going to file a complaint against him, and PO Dempsey said, “Go ahead, you fucking black bitch.”

PO Dempsey said that after he handed § 87(2)(b) the summons, § 87(2)(b) asked for his name and shield number and told him that he only gave her a summons because of her race. PO Dempsey provided § 87(2)(b) with his name and shield number and said, “I’m giving you a summons because you are double-parked, not because you are black. I have asked you to move several times. Race has nothing to do with it.” PO Dempsey had no independent recollection of § 87(2)(b) asking to take a photograph of him and/or her actually taking a photograph of him until shown the photograph, which he then acknowledged was of him. PO Dempsey said that he never, at any point during the incident, called § 87(2)(b) a “stupid black bitch.” After PO Dempsey told § 87(2)(b) that she was not issued a summons due to her race, PO Dempsey and PO Camerada resumed patrol.

§ 87(2)(g) PO Camerada said that after PO Dempsey issued § 87(2)(b) the summons, § 87(2)(b) recorded PO Dempsey with her cellphone and told PO Dempsey that he was only giving her a summons because she was black and he was a white, male officer. PO Dempsey said to § 87(2)(b) “I’m giving you a ticket because you are double-parked, not because of your race.” PO Camerada never called § 87(2)(b) a “stupid black bitch.” However, at one point, § 87(2)(b) said to PO Dempsey, “Oh, you’re calling me a black bitch.”

§ 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation C** be *unsubstantiated*.

Allegation D – Abuse of Authority: At the 101st Precinct stationhouse, Sergeant Alexander Rosaschi did not process § 87(2)(b)'s complaint regarding an officer.

It is undisputed that at the 101st Precinct stationhouse, § 87(2)(b) spoke to Sgt. Rosaschi, who was the desk sergeant, regarding her complaint.

§ 87(2)(b) said she told Sgt. Rosaschi that PO Dempsey had told her that he did not give a “fuck” where she worked, had called her a “stupid black bitch,” and had issued her a summons for double-parking. Sgt. Rosaschi asked § 87(2)(b) for her name, her contact information, and took a photo of her state ID. Sgt. Rosaschi said he would speak to PO Dempsey, and that he could take § 87(2)(b) complaint, but that it would be easier for § 87(2)(b) if she filed her complaint online or by phone directly with the CCRB. § 87(2)(b) left the stationhouse with § 87(2)(b) because based on Sgt. Rosaschi’s statement, she felt he did not want her to file her complaint at the stationhouse.

§ 87(2)(g). § 87(2)(b) said Sgt. Rosaschi said he could file § 87(2)(b) complaint, but the process would be faster if § 87(2)(b) filed her complaint online.

Sgt. Rosaschi said that § 87(2)(b) told him that she wished to file a complaint about PO Dempsey. Sgt. Rosaschi told § 87(2)(b) that she would have to wait 10 to 15 minutes because he needed to finish making a command log entry. He also informed § 87(2)(b) that the process for filing her complaint would take approximately one hour because it involved filling out paperwork, calling IAB, and calling the CCRB (08 Board Review). § 87(2)(b) seemed upset and said that she did not want to wait. Sgt. Rosaschi took down § 87(2)(b) name and phone number, made a command log entry regarding her complaint, and provided her with the CCRB’s phone number so that she could easily file her complaint at a later time. § 87(2)(b) left the stationhouse. Sgt. Rosaschi said that the command log entry he was trying to finish took precedent over a civilian complaint because he was “in the middle of something,” and was completing other daily command log entries, which had a tendency to take a substantial amount of time to get done.

The October 18, 2017 101st Precinct Command Log contains an entry related to an arrest entered at 5:00 p.m., and an entry at 5:15 p.m., which notes that § 87(2)(b) was present at the stationhouse to file a complaint because PO Dempsey wrote her a summons for double-parking and was rude to her, and that § 87(2)(b) wanted to call the CCRB herself to file her complaint at a later time (09 Board Review).

NYPD Patrol Guide, Procedure 207-31 states that when a member of service receives a request for a civilian complaint report, and the complainant does not want to immediately make their complaint, the desk officer will be advised and a Command Log entry will immediately be made and shall include the name of the complainant and any other pertinent information (10 Board Review).

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **Allegation D** be *unfounded*.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) [REDACTED] has been a party (11 Board Review).
- PO Dempsey has been a member-of-service for 11 years and has been a subject in three complaints and five allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
- On March 8, 2018, a Notice of Claim inquiry was submitted to the New York City Office of the Comptroller and the request is still pending (13 Board Review). It will be added to the case file upon receipt.

Squad No.: 14

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date